

IN THE JUSTICE COURT OF LAFAYETTE COUNTY, MISSISSIPPI

STATE OF MISSISSIPPI

VS.

CAUSE NOS. 9290609 , 9290610, 9291197 , 9291198, 9291202

MATTHEW REARDON

FORMAL NOTICE OF DEFENDANT'S INTENT TO APPEAL DE NOVO

Comes now before the court Matthew Reardon, your Defendant, whom hereby notices this court of his intention to appeal all guilty verdicts entered on the above referenced cause numbers to the Lafayette County Circuit Court for De Novo trial **WITH a Jury Demand requested**. Defendant would simultaneously raise the notion that he has filed a timely motion under MRCP Rule 59 in both the Circuit Court of Lafayette County as well as the Justice Court of Lafayette County which made reference prior to closing of Defendant's notice of appeal, and hereby files this as an official notice of appeal in order to ensure his formal notice of appeal is promptly presented before the court in good timing in a manner that best suits the court.

DEFENDANT acknowledges receipt of an order dated and entered 12/8/2021 denying his motion filed under MRCP Rule 59 further specifying Rule 1 states that the scope of *"These rules govern procedure in the circuit courts, chancery courts, and county courts in all suits of a civil nature..."*

DEFENDANT would state for the record in response that a state-court decision is contrary to federal law if the state court "Applies a rule that contradicts controlling Supreme Court authority or "if the state court confronts a set of facts that are materially indistinguishable from a decision" of the Supreme Court, but nevertheless arrives at a different result. **Williams v. Taylor, 529 U.S. 362, 406 (2000)**. Further, The Supreme Court has consistently held that a conviction obtained by the knowing use of perjured testimony is fundamentally unfair, and must be set aside if there is any reasonable likelihood that the false testimony could have affected the judgment of the jury."

United States v. Agurs, 427 U.S. 97, 103 (1976)

DEFENDANT respectfully requests reconsideration for **DISMISSAL OF CHARGES** based on all reasons listed out in his filed motion and the above cited controlling case law prior to a De Novo Appeal Commencing in Circuit Court

Respectfully Submitted this 27th Day of December 2021

Matt Reardon
Defendant
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